

STATE OF NEW YORK

6067--A

2025-2026 Regular Sessions

IN SENATE

March 5, 2025

Introduced by Sen. PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Cities 1 -- recommitted to the Committee on Cities 1 in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize Top Community Development Corporation to file an application for a real property tax exemption

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law to the contrary,
2 the commissioner of the New York city department of finance is hereby
3 authorized to accept from Top Community Development Corporation an
4 application for exemption from real property taxes pursuant to section
5 420-a of the real property tax law for the 2019 assessment roll, for the
6 parcel located in the county of Kings at 1274 Utica Avenue otherwise
7 known as section Brooklyn, 03 block 4760 lot 12, 03 block 4761 lot 53,
8 03 block 4761 lot 58. If accepted, the application shall be reviewed as
9 if it had been received on or before the taxable status date established
10 for such roll.

11 If satisfied that the Top Community Development Corporation: (i)
12 acquired title to the property for which it seeks exemption subsequent
13 to the taxable status date established for such roll and prior to the
14 taxable status date for the next ensuing assessment roll and (ii) would
15 otherwise be entitled to such exemption if such entity had filed an
16 application for exemption by the appropriate taxable status date, the
17 commissioner of the New York city department of finance, upon approval
18 by the city council of the city of New York, may grant exemption from
19 all taxation beginning with the date of acquisition of the property by
20 such entity and make appropriate correction to the subject roll. If
21 exemption is granted and such entity therefore shall have paid any tax
22 with respect to the subject roll, the department of finance may, in its

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 sole discretion, provide for the refund of those taxes paid including
2 the amount of any taxes held in escrow pursuant to the sale of such
3 property and cancel taxes, fines, penalties or interest remaining
4 unpaid. Notwithstanding any provision of law to the contrary, any
5 refund of taxes paid and any cancellation of taxes, fines, penalties,
6 liens or interest authorized pursuant to this act shall be limited to
7 taxes imposed within the three-year period immediately preceding the
8 effective date of this act.

9 § 2. This act shall take effect immediately.